

Co-ownership and rights-of-use agreement

Auto Shrooms

Date: August 24th 2026

Place: Zürich

This agreement is made between:

Blobfish Games GmbH, UID CHE-264.821.851, Erika-Mann-Strasse 11, 8050 Zürich, Switzerland, entered in the commercial register of the Canton of Zürich on 16 May 2023, represented by its managing director with sole signature authority, **Thomas Thy-Rha Gervraud** (“**Blobfish**”)

and

Pedro Maria Caldeira, Swiss citizen, address: Obstgartenstrasse 36, 8006 Zürich, Switzerland (“**Pedro**”)

Blobfish and Pedro are each a “**Party**” and together the “**Parties**”.

Recitals

A. Pedro is the author of the video game project currently titled **Auto Shrooms** (working title), including the existing playable prototype, design, code, and game art (the “**Game**”).

B. The Parties intend that **Blobfish** submit an application to **Pro Helvetia** under *Game Design Emerging Talents: pre-production* (deadline 1 September 2026) as **project sponsor and applicant** for the Game, and that Pedro be listed as designer, programmer, and game artist.

C. Pro Helvetia requires that **copyright and rights of use be held by the project sponsor**. The Parties therefore agree co-ownership of the Game and grant Blobfish the rights of use needed to act as sponsor, without transferring Pedro’s authorship or the commercial upside of the Game to Blobfish beyond what this agreement states.

D. This agreement is the co-ownership instrument referred to in that application.

The Parties agree as follows.

1. Definitions

1.1 Game means Auto Shrooms (working title) and any successor title the Parties use for the same work, including software, design, art, audio, trailers, store copy, and related materials, whether existing on the date of this agreement or created during its term.

1.2 Pre-existing work means everything Pedro (and any contractor working for him) created for the Game before the date of this agreement, including the Godot prototype and Steam capsule art.

1.3 Grant means any contribution Pro Helvetia awards on the September 2026 pre-production application for the Game, expected to be up to CHF 20,000.

1.4 Funded period means from the earliest start date Pro Helvetia allows (expected 1 January 2027) until the pre-production milestones agreed with Pro Helvetia are completed or the Grant is closed, whichever is later.

2. Purpose and roles

2.1 Blobfish is the **applicant and project sponsor** toward Pro Helvetia and the **publisher of record** for the application, Steam page, and Grant administration.

2.2 Pedro is the **author** of the Game and the person who designs, programmes, and produces the game art. He is not an employee of Blobfish by this agreement. Invoicing and social-insurance treatment of his developer fee are arranged separately so that Swiss fair-working-conditions rules can be met.

2.3 Thomas Thy-Rha Gervraud mentors the project and represents Blobfish. He is **not** a co-author of the Game. Blobfish's artistic contribution under this agreement is limited to studio hosting, mentorship, and administration.

2.4 Background art by Stephanie Stutz is a **contractor contribution** to the Game. She is not a party. The Party who commissions her shall obtain a written assignment or exclusive licence of that work into the Game so that clause 3 applies to it.

3. Co-ownership of intellectual property

3.1 Upon signature, Pedro contributes the Pre-existing work to the Game. **Copyright and related rights in the Game are co-owned by Pedro and Blobfish** in equal undivided shares, except as clause 3.4 (moral rights) and clause 5 (money) provide.

3.2 Each Party's later original contributions to the Game during the term vest automatically in the same co-ownership, without extra assignment, as soon as they are created.

3.3 Neither Party may assign, exclusively licence, pledge, or encumber its share, or grant a publisher/Steam deal, **without the other Party's prior written consent**. Consent may not be withheld unreasonably where the deal is needed to ship or to satisfy Pro Helvetia.

3.4 Moral rights (including the right to be named as author) remain with Pedro. Credits shall name Pedro Caldeira (design, code, game art). Thomas Gervraud may be credited as mentor. Stephanie Stutz shall be credited for background art.

3.5 Source repositories, Steam App IDs, analytics, and domain names used for the Game shall be accessible to both Parties. Pedro remains the day-to-day operator unless the Parties agree otherwise in writing.

4. Rights of use (project sponsor)

4.1 Pedro hereby grants Blobfish, for the territory of the world and for the term of this agreement, an **exclusive right of use** in the Game sufficient for Blobfish to:

- submit and perform the Pro Helvetia application and the Grant;
- hold, toward Pro Helvetia and third parties, the **copyright and rights of use as project sponsor**;
- host builds, the trailer, the Steam page, and press materials;
- collect the Grant and pay it out under clause 5.

4.2 That exclusive right of use is **solely for the Game and the Grant**. It is not a licence to reuse Game assets in other Blobfish titles (including *Brotato*) and not a licence to keep exploiting the Game if this agreement ends under clause 7.2.

4.3 Blobfish shall not use the Game in a way that contradicts Pro Helvetia's rules (including: not commissioned advertising work; no other federal funding on the same part of the project).

5. Grant, fees, and commercial proceeds

5.1 If the Grant is awarded, Pro Helvetia will pay **Blobfish**. Blobfish shall **pass through CHF 20,000** (or the full amount awarded, if less) to Pedro as **developer costs**, on a schedule that matches Pro Helvetia's instalments, and in any event within 15 business days of Blobfish receiving each instalment.

5.2 Blobfish retains **CHF 1,000** as **admin and marketing** for studio hosting, accounting, and the store page. Blobfish is not entitled to a design or programming salary from the Grant.

5.3 Pedro's **own contribution** of CHF 20,000 (labour and/or cash) is his co-funding of the project. It is not a loan to Blobfish and does not buy Blobfish a larger ownership share.

5.4 Net commercial proceeds from the Game (Steam and other store revenue after platform cuts, taxes, refunds, and documented project costs) belong **100% to Pedro**. Co-ownership under clause 3 does **not** mean a 50/50 revenue split. Blobfish has no royalty on Auto Shrooms unless the Parties later sign a separate publishing agreement.

5.5 Pedro shall invoice Blobfish (or otherwise document the developer fee) so Blobfish can book the Grant and the CHF 1,000 properly. Each Party bears its own taxes.

5.6 If Pro Helvetia requires clawback or repayment, the Parties shall cooperate. Amounts already passed to Pedro are repayable by Pedro to Blobfish only to the extent Pro Helvetia validly reclaims them and only after Blobfish has shown the reclaim in writing.

6. Duties during the application and funded period

6.1 Pedro delivers the playable prototype, trailer (≤ 2 minutes), and project description, and remains responsible for design, code, game art, and the trailer.

6.2 Blobfish (Thomas) provides the current **Handelsregister extract**, **myprohelvetia** filing as applicant, Blobfish **IBAN/UID**, and timely signatures on the application, budget, and this agreement.

6.3 Neither Party shall describe the other as a co-designer in public materials. The Hub/bootcamp mentorship may be mentioned as such.

7. Term and end of co-ownership

7.1 This agreement starts on the date of the last signature and continues until (a) the Funded period ends and Pro Helvetia's reporting is done, or (b) the Parties replace it with a later publishing or IP agreement, whichever comes first — subject to clause 7.2.

7.2 Automatic reversion to Pedro. If any of the following occurs, Blobfish's co-ownership share and exclusive right of use **end automatically**, and **all rights in the Game revert solely to Pedro**, with no extra payment to Blobfish except the CHF 1,000 already earned if the Grant was paid:

- the application is not submitted by 1 September 2026, or is withdrawn;
- Pro Helvetia rejects the application or awards CHF 0;
- Blobfish is dissolved, bankrupt, or ceases to be able to act as sponsor;
- Blobfish materially breaches clauses 4.2, 5.1, or 5.4 and does not cure within 30 days of written notice.

7.3 After a successful Grant, if the Parties want Blobfish to remain publisher beyond the Funded period, they shall sign a **separate** deal. Silence is not a publishing appointment. If they do not sign one within 90 days after the Funded period, either Party may trigger clause 7.2-style reversion by written notice: Blobfish's share reverts to Pedro; Pedro remains free to ship Auto Shrooms.

7.4 Clauses 3.4 (credits), 5.5–5.6 (tax and clawback), 8, and 9 survive termination.

8. Warranties and Pro Helvetia

8.1 Pedro warrants that, except for contractor work to be cleared under clause 2.4, he is free to contribute the Pre-existing work and that the Game is not commissioned advertising.

8.2 Blobfish warrants that it is a duly registered Swiss GmbH, that Thomas Thy-Rha Gervraud may bind it with sole signature, that it meets Pro Helvetia's Emerging Talent company-age rule, and that **the same part of the Game is not already funded by another Swiss federal body**.

8.3 Each Party shall tell the other at once if that warranty becomes untrue.

9. Miscellaneous

9.1 Changes must be in writing (including scanned signatures and recognised electronic signatures).

9.2 If a clause is invalid, the rest stays in force. The invalid clause is replaced by the valid one closest to the Parties' intent.

9.3 This agreement is the entire agreement on ownership and Grant pass-through of the Game. It does not make a partnership, employment, or joint-and-several company.

9.4 Governing law: Swiss law, excluding conflict-of-law rules. **Venue:** ordinary courts of the City of Zürich.

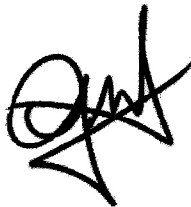
9.5 Drawn up in **English**, two originals (or one counterpart each). Each Party receives one.

Signatures

Blobfish Games GmbH

Represented by Thomas Thy-Rha Gervraud, managing director

Place, date: Zürich, August 24th 2026



Signature:

Name: Thomas Thy-Rha Gervraud

Pedro Caldeira

Place, date: Zürich, August 26th 2026

Signature: PCaldeira

Name: Pedro Maria Caldeira